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USD.AI

Nonbinding Term Sheet

Asset Backed Financing for Fermaca Domes
Date: January 27, 2026

Lender: USD.AI
Borrower: Fermaca Domes

Dear Laura Trejo Chaparro:

USD.AI is pleased to present this nonbinding term sheet to Fermaca Domes for an asset-backed term loan, secured by Nvidia GPU Servers. As a software development company specializing in innovative financing solutions, USD.AI leverages on-chain structured credit pools in decentralized finance (DeFi) to provide tailored capital for high-growth technology and infrastructure assets. The USD.AI Protocol, has facilitated over $400M in loan volume since 2022, with over $650M in current deposits. This proposal reflects our preliminary interest in supporting Fermaca Domes's strategic objectives, subject to satisfactory due diligence and final credit approval. The proposed structure governed by these terms is detailed in Exhibit A[1]. We look forward to collaborating with your team to structure a transaction that meets your needs while aligning with our investment criteria.

Borrower	Fermaca Domes
Lender	USD.AI
Loan Amount	70-80% LTV
Currency	USDC (USD-backed stablecoin)
Drawdown	Full drawdown at closing
Collateral	Nvidia GPU Servers (excludes soft costs)
Loan Term	3 years (36 thirty-day periods)
Amortization	3-year straight-line amortization (1/36th per 30 days)
Payment Schedule	Interest & amortization payments every 30 days
Interest Rate	7-10% for Investment-Grade, Hyperscaler offtake contract; 10-12% for non-Investment-Grade, strong corporate offtake contract; 12-15% for other offtake contract or no offtake contract. Final rate to be determined based on tenor and security of offtake contract and may be adjusted in the event of any change to the offtake agreement. All rates are simple interest.
Prepayment	Fully prepayable, no prepayment penalties

[1] More detailed structural description can be found on the USD.AI documents page: https://docs.usd.ai/solution-overview/1.-caliber-yield

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Structuring and Origination Fee	3.00% of Loan Amount payable at closing
Diligence Period	30 Days at most
Insurance	The Borrower shall, at all times during which any Loan Amount remains outstanding, maintain insurance coverage on the Collateral, equal to no less than the replacement value of such Collateral, with the Lender named as additional insured or loss payee. Parties to agree on language that allows Borrower to use Insurance Proceeds to acquire replacement chips and continue with the loan, rather than detonating an acceleration event and full repayment of the loan. For the avoidance of doubt, an Event of Default occurring during such time where the Borrower is acquiring and deploying replacement chips will trigger a Default Period and subsequent liquidation if payments are not made.
Cash Reserves	If no offtake contract is executed at closing, Borrower shall prefund into an escrow account an amount equal to three (3) months of scheduled principal and interest payments. Such funds may be released back to Borrower once trailing ninety-day (90-day) utilization of the Collateral exceeds eighty-five percent (85%). Prefunded amounts shall be held in an escrow account at a U.S.-regulated financial institution or other mutually agreed custodian, in U.S. dollars or USDC, and shall be used solely to support scheduled principal and interest payments under the Loan.
Diligence Requirements / Conditions Precedent to Closing	Completion of KYC/AML verification & document upload through iDenfy (link to be provided upon execution of term sheet) Installation and burn-in completion in Tier 3 or Tier 3-equivalent Datacenter as reasonably acceptable to Lender and its insurance providers, proof of machines in working order Completion of entity formation and asset tokenization (Exhibit B) Evidence of Borrower solvency (audited financials, statement of wealth or otherwise) Proof of Corporate authorization No material adverse change Aravolta monitoring node installed on premises where Collateral is housed
Event of Default	Failure to make required interest & principal payment in any 30-day period triggers a 30-day grace period (the "Default Period") with an annualized 25% default interest rate applied to the missed payment period and accruing during the Default Period Collateral liquidation occurs if Borrower does not pay total amount owed at completion of Default Period.
Borrower Representations and Warranties	Organization, authority, and good standing No additional liens on assets or asset disposition Authorization and enforceability of loan documents Accuracy of financial statements Ownership and condition of Collateral

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	Compliance with laws and regulations No pending or threatened litigation that would have a material adverse effect
Right of First Look	For a period of three (3) years from the date hereof, Borrower shall provide Lender with a right of first look with respect to material GPU-related financing opportunities undertaken by Borrower or its Affiliates. Borrower shall notify Lender in good faith of such opportunities and provide sufficient information to allow Lender to evaluate whether it wishes to propose financing on commercially competitive terms. Borrower shall have no obligation to accept any such proposal, and Borrower may pursue alternative financing arrangements if Lender does not deliver a written proposal on commercially competitive terms within a mutually agreed timeframe. This provision is intended to reflect the parties' desire to build a long-term financing partnership and shall not restrict Borrower's ability to obtain interim, vendor, bridge, factoring, local bank, project-level, or other financing, nor shall it operate as an exclusivity, consent, or approval right with respect to any such financing.
Governing Law & Jurisdiction	Delaware, USA, without giving effect to conflict of law principles The parties consent to the exclusive jurisdiction of the Delaware courts for all disputes arising out of this loan
Nonbinding Nature	This term sheet is for discussion purposes only and does not constitute a commitment to lend. Any commitment is subject to internal credit approval, satisfactory due diligence, and execution of definitive documentation.
Confidentiality	The terms of this Term Sheet and any related discussions shall remain strictly confidential and not disclosed to any third parties except as required by law or regulatory authorities.
Exclusivity and Expiry	The Borrower agrees not to execute alternative financing from another party for a period of 30 days from the date of execution of this Term Sheet This Term Sheet shall expire if not executed by Borrower within 10 days from the date hererof
Regulatory Characteristics	The parties acknowledge and agree that the transactions contemplated herein constitute **asset-backed financing** and **do not** constitute (i) the issuance or sale of "securities" under the U.S. Securities Act of 1933 (as amended) or (ii) money-transmission or money-services-business activity under applicable law.
MexicanLaw Addendum	Given the Collateral will be physically located in Mexico, the parties will, promptly following the date hereof, negotiate in good faith and execute a collateral addendum governed by the laws of those jurisdictions to address local perfection, enforcement, and tax matters (the "Mexico Addendum"). Execution of the Mexico Addendum shall be a **condition subsequent**, not a condition precedent, to funding; Borrower shall cooperate in all reasonable respects to facilitate its completion.
Definitive Documentation	The Loan will be evidenced by the GPU Warehouse Receipt and an on-chain smart-contract with terms consistent with this Agreement and otherwise in form and substance reasonably satisfactory to USD.AI and Borrower

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	(collectively, the "Definitive Documents"). In the event of any inconsistency between this Agreement and the Definitive Documents, the Definitive Documents shall control.

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Signature Page Follows

Fermaca Domes

DocuSigned by:

By: Laura Trejo Chaparro

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Name: Laura Trejo Chaparro

Title: ATTORNEY IN FACT

Date: 1/27/2026

USD.AI

Signed by:

By: _____

11CD4878551A4BC...

Name: Glenn Kennedy

Title: Director

Date: 1/27/2026

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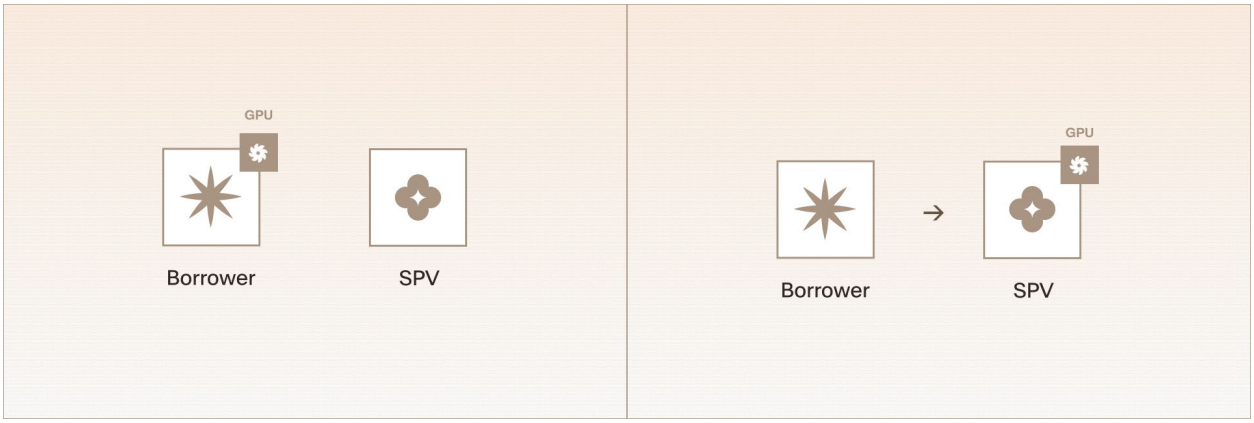
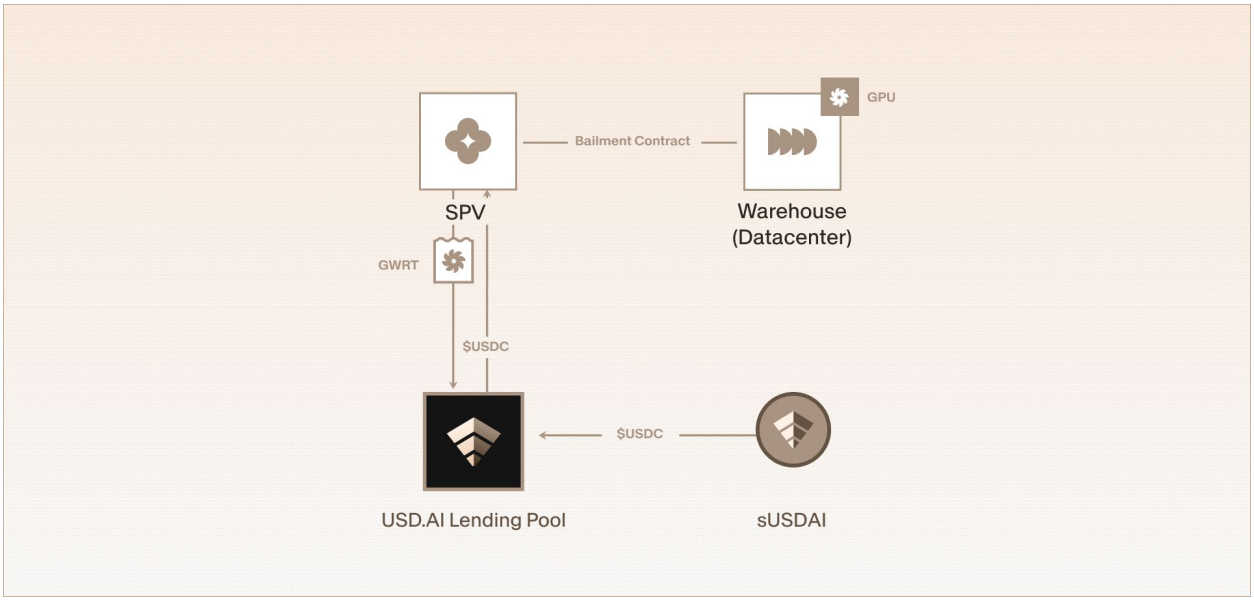
Exhibit A

Borrower purchases GPUs using, or contributes GPUs into, bankruptcy remote SPV



Datacenter issues Warehouse Receipt, Tokenized by USD.AI Foundation

Tokenized Warehouse Receipt pledged by Borrower to USD.AI Protocol, Loan Proceeds Disbursed



CONFIDENTIAL

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Exhibit B

Customer Service Agreement (attached)

Electronic Warehouse Receipt (attached)

Independent Manager Staffing Agreement (attached)

SPV LLC Agreement (attached)

Sale & Contribution Agreement (attached)